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BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
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FIAT CHRYSLER AUTOMOBILES NV,
FCA US LLC and FCA Italy S.p.A.,

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

Complainants,

Wallenius Wilhelmsen Logistics AS, Wallenisus
Wilhelmsen Logistics Americas LLC, EUKOR Car
Carriers Inc., Nippon Yusen Kabushiki Kaisha, NYK
Line (North America) Inc., Mitsui O.S.K. Lines, Ltd.,
MOL (America) Inc., Kawasaki Kisen Kaisha, Ltd.,
"K" Line America, Inc., Compañía Sud Americana de
Vapores, and Hoëgh Autoliners AS,

Docket No. 17-09

Respondents.



COMPLAINT

INTRODUCTION

1. Petitioners Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.p.A (collectively "FCA") bring this Complaint against Respondents Wallenius Wilhelmsen Logistics AS ("WWL"), Wallenisus Wilhelmsen Logistics Americas LLC ("WWL America"), EUKOR Car Carriers Inc. ("EUKOR"), Nippon Yusen Kabushiki Kaisha ("NYK"), NYK Line (North America) Inc. ("NYK America"), Mitsui O.S.K. Lines, Ltd. ("MOL"), MOL (America) Inc., MOL (America) Inc., Kawasaki Kisen Kaisha, Ltd. ("K-Line"), "K" Line America, Inc. ("K-Line America"), Compañía Sud Americana de Vapores ("CSAV"), and Hoëgh Autoliners AS ("Hoëgh") to recover reparations and the cost of the lawsuit for its injuries resulting from the Respondents' violations of the Shipping Act of 1984, 46 U.S.C. § 40101 *et seq.*

2. Since at least 1997, Respondents and unnamed conspirators have conspired and acted in concert to suppress competition for roll on, roll off cargo shipping services purchased by FCA and others. Respondents carried out their conspiracy by entering into contracts and other agreements with FCA and charging FCA anti-competitive pricing, resulting in FCA paying far more for the roll on, roll off cargo shipping services than FCA would have in a competitive market. Respondents' conduct has been the subject of a Department of Justice criminal antitrust proceeding, which is still ongoing and, to-date, has resulted in six shipping companies and four executives of those companies pleading guilty to violations of the Sherman Act and paying fines totaling \$255 million. Respondents Nippon Yusen Kabushiki Kaisha, K-Line, Wallenius Wilhelmsen Logistics, EUKOR, Compañía Sud Americana de Vapores, and Hoëgh have admitted to entering into and executing illegal agreements allocate customers and routes, rig bids, and fix, stabilize, and maintain the prices for certain ocean shipping services for roll on, roll off cargo.

3. The Shipping Act requires ocean common carriers to file all agreements between or among ocean common carriers to "discuss, fix, or regulate transportation rates, including through rates, cargo space accommodations, and other conditions of service," "pool or apportion traffic, revenues, earnings, or losses," "allot ports or regulate the number and character of voyages between ports," "regulate the volume or character of cargo or passenger traffic to be carried," "engage in an exclusive, preferential, or cooperative working arrangement between themselves . . .," "control, regulate, or prevent competition in international ocean transportation," or "discuss and agree on any matter related to a service contract" with the Federal Maritime

Commission. In plain violation of these requirements, Respondents failed to file their agreements to fix prices, allocate customers and/or artificially restrain capacity. By charging FCA in accordance with these unfiled agreements, Respondents violated, 46 U.S.C. §§ 40302(a), 41102(b)(1), 41102(c), 41103(a)(1), 41103(2), 41104(10), 41105(1), and 41105(6), and the regulations promulgated thereunder, 46 CFR § 535.401 *et seq.*

4. Respondents' violations of the Shipping Act, on information and belief, continue to this day. Respondents continue to charge FCA fees that were set as a component of Respondents' agreements to engage in illegal price fixing, customer allocation and capacity reduction, and Respondents have neither filed these agreements with the FMC, nor received approval from the FMC related to those agreements.

THE PARTIES

5. Petitioner Fiat Chrysler Automobiles N.V. is the seventh-largest automaker in the world based on total annual vehicle sales and is a publically traded company, organized under the laws of the Netherlands and headquartered in the United Kingdom at 25 St. James's Street, London, SW1A 1HA. Petitioner FCA US LLC is a wholly-owned subsidiary of Fiat Chrysler Automobiles N.V organized under the laws of Delaware. Headquartered at 1000 Chrysler Drive, Auburn Hills, Michigan, 48326, FCA US LLC designs, engineers, manufactures and sells vehicles under the Chrysler, Dodge, Jeep, Ram and FIAT brands. The company also distributes the Alfa Romeo brand vehicles and Mopar brand products. Petitioner FCA Italy S.p.A is a wholly-owned subsidiary of Fiat Chrysler Automobiles N.V.

organized under the laws of Italy. Headquartered at Via Nizza 250, 10126 Turin, Italy. FCA Italy S.p.A. designs, engineers, manufactures and sells vehicles under the FIAT, FIAT Professional LCVs, Abarth, Alfa Romeo, and Lancia brands. The company also distributes the Jeep brand vehicles.

6. FCA US LLC is the successor-in-interest to the Chrysler Group LLC and, in December 2014, acquired all claims of the Chrysler Group LLC.

7. Respondent Wallenius Wilhelmsen Logistics AS ("WWL") is a common carrier and Norwegian company with its principal place of business at Strandveien 12, No-1366 Lysaker, Norway. Wallenius Wilhelmsen Logistics America LLC, headquartered at 188 Broadway #1, Woodcliff Lake, New Jersey, 07677, is a wholly-owned subsidiary of WWL and acts as WWL's agent in the United States. During the relevant time period, WWL controlled and directed WWL America's policies, sales, and finances and WWL and WWL America (collectively "WWL") directly, or through their wholly-owned or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports.

8. Respondent EUKOR Car Carriers Inc. ("EUKOR") is a common carrier and a South Korean company with its principal place of business at 24th Floor, Gangnam Finance Center, 152 Teheran-ro, Gangnam-gu, Seoul, South Korea, 135-984 and its U.S. office located at 560 Sylvan Ave, Englewood Cliffs, New Jersey, 07632. During the relevant time period, EUKOR directly, or through their wholly-owned or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo

services to FCA for shipments to and from the United States and between international ports.

9. Respondent Nippon Yusen Kabushiki Kaisha ("NYK") is a common carrier and a Japanese company with its principal place of business at 3-2, Marunouchi 2 Chome, Chiyoda-Ku, Tokyo, 100-0005, Japan. NYK Line (North America) Inc. ("NYK America") is a wholly-owned subsidiary of NYK, headquartered at 300 Lighting Way, Secaucus, New Jersey, 07094, and acts as NYK's agent in the United States. During the relevant time period, NYK controlled and directed NYK America's policies, sales, and finances and NYK and NYK America (collectively "NYK") directly, or through their wholly-owned or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports.

10. Respondent Mitsui O.S.K. Lines, Ltd. ("MOL") is a common carrier and a Japanese company with its principal place of business at 1-1 Toranomon 2-Chrome, Minato-ku, Tokyo, 105-8688, Japan. Mitsui O.S.K. Bulk Shipping (USA), Inc. MOL (America) Inc. is a wholly-owned subsidiary of MOL, with an office at 10 Woodbridge Center Drive, Suite 900, Woodbridge, New Jersey, 07095. ("MOBUSA"). World Logistics Service (U.S.A.), Inc. ("WLS") is wholly-owned subsidiary of MOL, headquartered in Long Beach, California. MOBUSA and WLS act as MOL's agents in the United States. During the relevant time period, MOL controlled and directed MOBUSA and WLS's policies, sales, and finances and MOL, MOBUSA, and WLS (collectively "MOL") directly, or through their wholly-owned

or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports.

11. Respondent Kawasaki Kisen Kaisha, Ltd. ("K-Line") is a common carrier and a Japanese company with its principal place of business at 1-1, Uchisaiwaicho 2-Chrome, Chiyoda-ku, Tokyo, 100-8540, Japan. "K" Line America, Inc. ("K-Line America") is a wholly-owned subsidiary of K-Line and a Virginia company headquartered at 8730 Stony Point Parkway, Richmond, Virginia, 23235, and acts as K-Line's agent in the United States. During the relevant time period, K-Line and controlled and directed K-Line America's policies, sales, and finances and K-Line and K-Line America (collectively "K-Line") directly, or through their wholly-owned or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports.

12. Respondent Compañía Sud Americana de Vapores ("CSAV") is a common carrier and a Chilean company with its principal place of business at Calle Sotomayor 50, Valparaiso, Chile. CSAV Agency North America, LLC ("CSAV America") is a wholly-owned subsidiary of CSAV, headquartered at 99 S. Wood Ave #900, Iselin, New Jersey, 08830, and acts as CSAV's agent in the United States. During the relevant time period, CSAV and controlled and directed CSAV America's policies, sales, and finances and CSAV and CSAV America (collectively "CSAV") directly, or through their wholly-owned or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports.

13. Respondent Hoëgh Autoliners AS ("Hoëgh") is a common carrier and a Norwegian company with its principal place of business at P.O. Box 4, Skøyen, 0212, Oslo, Norway. Hoëgh Autoliners, Inc. ("Hoëgh America") is a wholly-owned subsidiary of Hoëgh, headquartered at 5623 Intermodal Drive, Jacksonville, Florida, 32226, and acts as Hoëgh agent in the United States. During the relevant time period, Hoëgh and controlled and directed Hoëgh America's policies, sales, and finances and Hoëgh and Hoëgh America (collectively "Hoëgh") directly, or through their wholly-owned or controlled subsidiaries, provided, marketed, and sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports.

JURISDICTION AND VENUE

14. The FMC has jurisdiction over this complaint pursuant to the Shipping Act, 46 U.S.C. §§ 41301, 41305. Respondents have entered into secret, unfiled, and unlawful agreements to allocate customers and routes, rig bids, restrict capacity, and otherwise raise, fix, stabilize, or maintain prices for roll on, roll off cargo services for shipments to and from the United States in violation of provisions of the Shipping Act, including 46 U.S.C. §§ 40302(a), 41102(b)(1), 41102(c), 41103(a)(1), 41103(2), 41104(10), 41105(1), and 41105(6), and the regulations promulgated thereunder, 46 CFR § 535.401 *et seq.*

15. The activities of the Respondents and their co-conspirators, as alleged in this Complaint: 1) constituted United States interstate commerce; 2) constituted United States import trade or import commerce; or 3) were within the flow of and a

had direct, substantial, and reasonably foreseeable effect on domestic trade or commerce or import trade or import commerce in the United States.

16. The FMC has personal jurisdiction over each Respondent because each Respondent is a “common carrier” and an “ocean common carrier” as defined in the Shipping Act, 46 U.S.C. §§ 40102(6), 40102(17). Each Respondent: 1) transacted business within the United States; 2) directly sold ocean shipping services for roll on, roll off cargo within the United States; 3) have substantial aggregate contacts to the United States; 4) was engaged in an illegal conspiracy directed at, and which had a substantial, direct, reasonably foreseeable and intended effect of, causing injury to the business or property of persons and entities in the United States; and 5) purposefully availed themselves of the laws of the United States.

BACKGROUND AND ALLEGATIONS OF FACT

Roll on, Roll Off Cargo: Transportation of Wheeled Freight

17. Respondents and their co-conspirators transport wheeled freight, also known as “roll on, roll off cargo,” on ocean shipping vessels specifically designed to transport such freight on deep sea routes. Newly assembled cars, trucks, and motor vehicles (“vehicles”) are transported as roll on, roll off cargo because it is cheaper than transporting the vehicles in containers and, in some instances, the vehicles cannot be transported in containers. There is no reasonable substitute for roll on, roll off cargo services.

18. During all relevant times, FCA used roll on, roll off cargo services to ship vehicles it manufactured between continents. FCA arranges for the international transport of its vehicles by Respondents and their co-conspirators and purchases

services directly from Respondents and their co-conspirators to ship FCA's, and its parent and subsidiary companies', vehicles to and from the United States and elsewhere in the world. FCA makes the purchases for roll on, roll off cargo services from its headquarters in Auburn Hills, Michigan and Turin, Italy.

Respondents and their Co-Conspirators' Illegal, Anti-Competitive Conduct

19. Since at least 1997, Respondents and their co-conspirators have engaged in a continuous and wide-ranging conspiracy to suppress competition for roll on, roll off cargo transportation services. Respondents and their co-conspirators have secretly agreed to allocate customers and routes, rig bids, restrict capacity, and otherwise raise, fix, stabilize, or maintain prices for roll on, roll off cargo services for shipments to and from the United States and elsewhere in the world. Respondents and their co-conspirators' secret agreements to suppress competition were never filed with the Federal Maritime Commission. As a result of Respondents and their co-conspirators' secret agreements and Shipping Act violations, FCA paid higher prices for roll on, roll off cargo services than it would have in a competitive market.

20. Competition authorities around the world have actively investigated Respondents and their co-conspirators' illegal conduct in the market for roll on, roll off cargo services. The Department of Justice, Antitrust Division, has pursued criminal charges against the participants in the conspiracy. Five of the Respondents, NYK, K-Line, WWL/EUKOR, CSAV, and Hoëgh have pleaded guilty to criminal antitrust charges in the United States District Court of Maryland and paid fines totaling \$255 million. WWL paid a fine of \$98.9 million, NYK paid \$54.9 million, K-Line paid \$67.7 million, Hoëgh paid \$21 million, and CSAV paid \$8.7 million. Five

executives of those Respondents have pleaded guilty and sentenced to prison terms. Seven more executives are known to have been indicted and are fugitives. The most recent corporate guilty plea occurred on September 27, 2017 and the DOJ's investigation is ongoing.

21. Many of the Respondents and their co-conspirators have also been fined by foreign competition authorities.

22. None of the fines Respondents and their co-conspirators have paid have compensated FCA or the other victims of their illegal activities.

23. From 1997 to present, FCA has purchased hundreds of millions of dollars' worth of roll on, roll off cargo services from Respondents and their co-conspirators, to transport newly assembled vehicles to and from ports in the United States and elsewhere in the world. Since 1997, FCA has negotiated and entered into contracts and agreements with Respondents and their co-conspirators to purchase roll on, roll off cargo services for shipments to and from the United States and elsewhere in the world. Some of those contracts are still in effect today. The former and current contracts and agreements contained prices that were negotiated in an anti-competitive market and, therefore, artificially inflated and supracompetitive, as a direct result of Respondents and their co-conspirators' illegal, secret, and unfiled agreements to allocate customers and routes, rig bids, restrict capacity, and otherwise raise, fix, stabilize, or maintain prices for roll on, roll off cargo services for shipments to and from the United States and elsewhere in the world. FCA has suffered and continues to suffer damages as a result of the Respondents and their co-conspirators' violations of the Shipping Act and brings this action to recover reparations for the higher prices it

paid for roll on, roll off cargo services for shipments to and from the United States and elsewhere in the world, as well as any lingering effects of the conspiratorial conduct alleged herein.

24. Because Respondents and their co-conspirators illegal conduct and agreements were secret, and Respondents and their co-conspirators took steps to conceal their illegal conduct and agreements, FCA cannot yet know all of the ways that Respondents and their co-conspirators conspired or how the conspiracy harmed FCA.

25. On information and belief, FCA alleges that Respondents and their co-conspirators engaged in acts in furtherance of the conspiracy in addition to those specifically alleged in this Complaint and those acts also violated the Shipping Act.

26. Respondents and their co-conspirators communicated about bids and about rigging bids for roll on, roll off cargo services that they were providing to customers, including FCA. Rigged bids would be submitted in response to a customer's request for a quotation.

27. Respondents and their co-conspirators also refrained from submitting bids to certain customers and/or routes, submitted intentionally high bids, or offered terms and conditions that made the bid less attractive.

28. The bid-rigging and customer/route allocation permeated the industry and affected bids made to FCA and bids accepted by FCA. Upon information and belief, when FCA issued a request for a quotation or bid for roll on, roll off cargo services Respondents and their co-conspirators would discuss and agree on who would bid,

who would not bid, how much to bid, and/or whether the incumbent would retain the business.

29. Additionally, the Respondents and their co-conspirators entered into secret, unfiled agreements not to compete for FCA's business and restrict capacity by reducing their fleets and the restricting the number of vessels available at any given time.

30. Respondents also agreed on prices to charge their customers for roll on, roll off cargo services and to fix, raise, stabilize, and artificially maintain prices for roll on, roll off cargo services to and from the United States and elsewhere in the world.

31. This conduct took place in accordance with agreements among the Respondents and their co-conspirators that were secret and were not filed with the FMC and never became effective under the Shipping Act. Pricing in accordance with those unfiled agreement by Respondents and their co-conspirators has continued through the current date and FCA has continued to pay, and be damaged by, unfiled, supracompetitive pricing agreements.

Respondents have admitted to entering into secret, unfiled agreements

32. As alleged above, competition regulators have executed a global, coordinated investigation into the unlawful agreements alleged in this Complaint. To date, Respondents Nippon Yusen Kabushiki Kaisha, K-Line, Wallenius Wilhelmsen Logistics, EUKOR, Compañía Sud Americana de Vapores, and Hoëgh have admitted to entering into and executing illegal agreements to allocate customers and routes, rig

bids, and fix, stabilize, and maintain the prices for certain ocean shipping services for roll on, roll off cargo. None of these agreements were filed with the FMC.

33. Respondent CSAV was the first Respondent to plead guilty. CSAV pleaded guilty to entering into agreements with Respondents and their co-conspirators to charge non-competitive prices, allocate customers and routes, bid rig, and to not compete. CSAV agreed to pay an \$8.9 million fine but no restitution order was entered.

34. Respondent K-Line pleaded guilty to entering into agreements with Respondents and their co-conspirators to charge non-competitive prices, allocate customers and routes, bid rig, and to not compete. K-Line agreed to pay a \$67.7 million fine but no restitution order was entered.

35. Respondent NYK pleaded guilty to entering into agreements with Respondents and their co-conspirators to charge non-competitive prices, allocate customers and routes, bid rig, and to not compete. NYK agreed to pay a \$59.4 million fine but no restitution order was entered.

36. Respondent WWL pleaded guilty to entering into agreements with Respondents and their co-conspirators to charge non-competitive prices, allocate customers and routes, bid rig, and to not compete. WWL agreed to pay a \$98.9 million fine but no restitution order was entered.

37. Respondent Hoëgh pleaded guilty to entering into agreements with Respondents and their co-conspirators to charge non-competitive prices, allocate customers and routes, bid rig, and to not compete. Hoëgh agreed to pay a \$21 million fine but no restitution order was entered.

38. Respondent MOL applied to the DOJ's leniency program and has been conditionally accepted.

39. At no point did Respondents file any of the admittedly illegal agreements with the FMC, nor did the FMC ever approve, modify, or amend the rates charged by Respondents for roll on, roll off cargo transport services to and from the United States.

FCA Purchased Roll On, Roll Off Cargo Transport Services for Prices Made in Accordance with Unfiled Agreements and Continues to Pay those Prices

40. Since at least 1997, FCA and its predecessors-in-interest have purchased roll on, roll off cargo transport services from Respondents and their co-conspirators. FCA made those purchases after conducting a procurement process by where bids were solicited and evaluated. FCA did not know, and had no way to know, that the bids and prices that it received from Respondents were fixed pursuant to secret, unfiled agreements among Respondents and their co-conspirators.

41. FCA, from its headquarters in Auburn Hills, Michigan and Turin, Italy, directed the price, quantity, and other conditions of the cargo services purchased from Respondents and their co-conspirators. FCA also, from its headquarters in Auburn Hills and Turin, issued payments to Respondents for roll-on, roll-off cargo shipments to and from the United States and elsewhere in the world.

Respondents Concealed their Secret, Unfiled Agreements and Continue to Violate the Shipping Act

42. Agreements to fix prices, rig bids, restrain capacity, and allocate customers and routes are, by their nature, inherently self-concealing. Respondents and their co-conspirators made their agreements in secret and did not disclose the

agreements to FCA. Indeed, to effectively carry out the illegal agreements, the conspirators had to ensure that customers and competition authorities did not discover the agreements.

43. To keep their conspiracy a secret, Respondents and their co-conspirators did not file their agreements with the FMC, as required by the Shipping Act. The Shipping Act's requirement that common carriers to file agreements would ordinarily protect consumers from anticompetitive agreements because the filing requirement furthers the Shipping Act's stated purpose of promoting "competitive and efficient ocean transportation." 46 U.S.C. § 40101(4). Given the filing requirement, FCA had no reason to suspect that an unlawful, anticompetitive agreement or agreements had been reached.

44. To date, Respondents and their co-conspirators have not disclosed their participation in the illegal, secret agreements outlined in this Complaint to FCA, nor have they filed the agreements with the FMC or offered to renegotiate the prices in the contracts with FCA or reimburse FCA the difference between the competitive and supracompetitive prices FCA has paid over the last twenty years.

45. Instead, Respondents and their co-conspirators concealed their unlawful conducts by engaging in acts to create the illusion of competition. For example, at times, Respondents and their co-conspirators submitted dummy bids that were designed to create the appearance of competition. Respondents also made public statements that they were operating in a competitive market and were complying with the applicable laws of the international community.

46. FCA believed it was receiving competitive prices for the services purchased from Respondents and/or their co-conspirators. FCA invited Respondents and its co-conspirators to participate in a competitive purchasing process, in which FCA solicited bids for a new or renewed contract award. FCA then evaluated the bids, including by comparing the bids against historical rates. FCA then negotiated with the selected supplier. However, all of the historic and current rates were artificially inflated by the conspiracy, a fact that FCA was not aware of, despite its due diligence. Respondents' affirmative concealment of their illegal conduct made it impossible for FCA to receive a competitive price for its purchases of roll on, roll off cargo transport services.

47. Because the current prices for roll on, roll off cargo transport services are based on historic prices, FCA continues to be injured by the secret, unfiled agreements today.

CAUSES OF ACTIONS

COUNT I: VIOLATIONS OF 46 U.S.C. § 40302(a)

48. FCA incorporates by reference the facts and allegations stated in paragraph 1-47 as if full set forth herein.

49. Respondents and their agents and co-conspirators entered into and engaged in agreements of the types enumerated in 46 U.S.C. § 40301(a), including, but not limited to, an agreement or agreements "between or among ocean common carriers" to:

- Discuss, fix, or regulate transportation rates;
- Pool or apportion traffic, revenues, earnings or losses;

- Regulate the volume or character of cargo to be carried;
- Engage in an exclusive, preferential or cooperative working agreement between themselves; or
- Control, regulate, or prevent competition in intern

50. Respondents' agreement(s) between and among themselves to restrain trade by reducing capacity, allocating customers and routes, rigging bids, and otherwise raising, fixing, stabilizing, or maintaining prices for roll on, roll off cargo transports services for shipments to and from the United States caused and is causing harm to FCA.

51. Any such agreement(s) between and among Respondents were required to be filed with the FMC under 46 U.S.C. § 40302(a). Respondents willfully avoided or failed to file any such agreement with the FMC.

52. By failing to file their anticompetitive agreements with the FMC, Respondents violated 46 U.S.C. § 40302(a).

COUNT II: VIOLATIONS OF 46 U.S.C. § 41102(b)

53. FCA incorporates by reference the facts and allegations stated in paragraph 1-52 as if full set forth herein.

54. By operating under agreements required to be filed with the FMC under 46 U.S.C. § 40302(a), that were not filed with the FMC and, therefore, did not become "effective" under 46 U.S.C. § 40304, Respondents engaged in conduct prohibited by 46 U.S.C. § 41102(b)(1).

COUNT III: VIOLATIONS OF 46 U.S.C. 41102(c)

55. FCA incorporates by reference the facts and allegations stated in paragraph 1-54 as if full set forth herein.

56. Beginning at a time unknown to FCA, but at least as early as February 1, 1997, and continuing through the present, Respondents failed to establish, observe, and enforce just and reasonable regulations and practices relating to receiving, handling, storing, or delivering property. Respondents and their co-conspirators violated 46 U.S.C. § 41102(c) through their intentional conduct designed to unreasonably interfere with the international transportation of property by FCA.

COUNT IV: VIOLATIONS OF 46 U.S.C. 41103(a)

57. FCA incorporates by reference the facts and allegations stated in paragraph 1-56 as if full set forth herein.

58. Beginning at a time unknown to FCA, but at least as early as February 1, 1997, and continuing to an date unknown at this time, Respondents knowingly disclosed, offered, solicited, and received information concerning the nature, kind, quantity, destination, consignee, or routing of property tendered to Respondents and their co-conspirators.

59. This information was shared without FCA's consent and was used to the detriment of FCA in that FCA was forced to pay supracompetitive prices for roll on, roll off cargo transport services.

COUNT V: VIOLATIONS OF 46 U.S.C. 41104(10)

60. FCA incorporates by reference the facts and allegations stated in paragraph 1-59 as if full set forth herein.

61. Beginning at a time unknown to FCA, but at least as early as February 1, 1997, and continuing through today, Respondents and their co-conspirators violated this section because their concerted action resulted in an unreasonable refusal to deal and negotiate. In allocating customers, including FCA, every Respondent or co-conspirator that agreed not to pursue FCA or other customers' business unreasonably refused to deal and/or negotiate in good faith.

COUNT VI: VIOLATIONS OF 46 U.S.C. 41105

62. FCA incorporates by reference the facts and allegations stated in paragraph 1-61 as if full set forth herein.

63. Collectively, Respondents constitute a "conference or group of two or more common carriers."

64. By engaging in the conduct alleged in this Complaint, Respondents engaged in behavior prohibited by 46 U.S.C. § 41105, including, for example:

- Taking concerted action that resulted in an unreasonable refusal to deal with FCA;
- Engaging in conduct that unreasonably restricted the use of intermodal services;
- Denying in the export foreign commerce of the United States compensation to ocean freight forwarders, or limiting that compensation to less than a reasonable amount; or
- Allocating shippers among specific carriers that were parties to an agreement, in a manner not authorized by 46 U.S.C. § 40303(d).

COUNT VII: VIOLATIONS OF 46 C.F.R. § 535.401 *et seq.*

65. FCA incorporates by reference the facts and allegations stated in paragraph 1-64 as if full set forth herein.

66. By failing to file with their agreements to restrain trade by reducing capacity, allocating customers and routes, rigging bids, and otherwise raising, fixing, stabilizing, or maintaining prices for roll on, roll off cargo transports services for shipments to and from the United States with the FMC, Respondents violated the FMC's regulations supporting the Shipping Act.

INJURY SUFFERED BY FCA

67. FCA has been injured by Respondents and their co-conspirators as alleged above. Specifically, FCA has suffered financial damages in amount to be determined as a direct result of Respondents violating 46 U.S.C. §§ 40302(a), 41102(b)(1), 41102(c), 41103(a)(1), 41103(2), 41104(10), 41105(1), and 41105(6), and the regulations promulgated thereunder, 46 CFR § 535.401 *et seq.* Respondents violations cause price competition in the sale of roll on, roll off cargo transport services to be restrained, suppress, and/or eliminated and FCA has suffered injury to its business and property by being forced to pay supracompetitive prices.

PRAYER FOR RELIEF

WHEREFORE, FCA respectfully prays for relief as follows:

1. Respondents be required to answer the charges herein;
2. That, after due investigation and hearing, Respondents be found to have violated 46 U.S.C. §§ 40302(a), 41102(b)(1), 41102(c), 41103(a)(1), 41103(2), 41104(10), 41105(1), and 41105(6), and 46 CFR § 535.401 *et seq.*;

3. That the FMC order Respondents to stop violating the Shipping Act;
4. That FCA be awarded reparations in a sum to be proven under 46 U.S.C. § 41305, interest (46 U.S.C. § 41305(a)), and reasonable attorneys' fees (46 U.S.C. § 41305(b));
5. That FCA be awarded double its proven injury under 46 U.S.C. § 41305(c) because Respondents and their co-conspirators violated 46 U.S.C. § 41102(b) and 41105(1);
6. That Respondents be found jointly and severally liable for the conduct alleged herein and any reparations awarded;
7. That such other and further order be made as the FMC determines to be proper; and
8. FCA request a hearing and asks that the hearing be held in Washington, D.C.

SCHIFF HARDIN LLP
Attorneys for Complainants

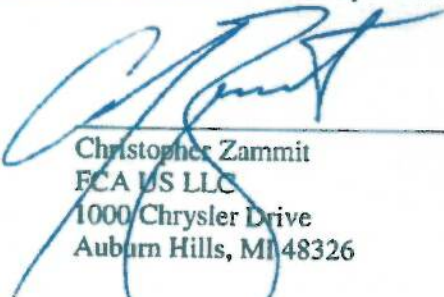
By: 
Robert J. Wierenga (P59785)
Jessica A. Sprovtsoff (P70218)
350 S. Main Street, Suite 210
Ann Arbor, MI 48104
Telephone: (734) 222-1500
Facisimile: (734) 222-1501
rwierenga@schiffhardin.com
jsprovtsoff@schiffhardin.com

Dated: October 6, 2017

VERIFICATION

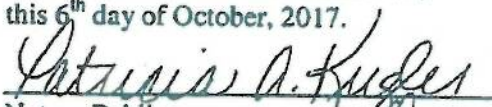
Christopher Zammit, being first duly sworn on oath, deposes and states that he is Senior Staff Counsel, FCA US LLC, that he has read the foregoing Complaint and that the facts stated therein he believes to be true on information and belief and upon information received from others.

Dated: October 6, 2017.



Christopher Zammit
FCA US LLC
1000 Chrysler Drive
Auburn Hills, MI 48326

Subscribed and sworn to before me,
this 6th day of October, 2017.


Notary Public:

State of Michigan, County of Oakland

My Commission expires: 8/3/19

Patricia A. Kugler
Notary Public, Oakland County, Michigan
Acting In Oakland County, Michigan
My Commission Expires 8/3/2019